

24NNCV01263 24NNCV01263

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-27

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F27%2F2026

Source SHA-256: 9094db2e52d0167a842e6a1f5ef27dd8b069ee8f620683955e7d85f78ec1c1b6

Case Number: 24NNCV01263 Hearing Date: August 27, 2026 Dept: P

[TENTATIVE] ORDER DENYING DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

I. INTRODUCTION

This is a medical malpractice action in which Plaintiff Ty Vanderford ("Plaintiff") alleges that Defendants Dwayne Logan, M.D. ("Dr. Logan"), Azul Vision, Inc. ("Azul Vision"), and Eyecare Specialists Medical Group, Inc. ("Eyecare Specialists") (collectively, "Defendants") were negligent in their care and treatment of Plaintiff in connection with a cataract in his right eye and resulting cataract surgery.

On May 18, 2026, Defendants filed the instant motion for summary judgment. On August 5, 2026, Plaintiff filed an opposition, and on August 14, 2026, Defendants filed a reply.

Evidentiary objections

Defendants' objections

· Nos. 1-7 OVERRULED

Plaintiff's objections

· Nos. 1-2 OVERRULED

II. LEGAL STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) CCP Section 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (*Juge v.*

County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.

To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 166.)

III. ANALYSIS

Defendants move for summary judgment on the grounds that the care and treatment provided to Plaintiff complied with the applicable standard of care and that no act or omission by Defendants caused or contributed to Plaintiff’s alleged injuries. (Motion, p. 2.)

A prima facie case for medical malpractice consists of (1) a duty to conform to the relevant standard of care; (2) a breach of that duty, i.e., the negligent conduct; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting damage. (*Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.)

The standard of care against which the acts of health care providers are to be measured is a matter within the knowledge of experts. (*Elcome v. Chin* (2003) 110 Cal.App.4th 310, 317.) Unless the conduct required by the circumstances is within the common knowledge of the layman, the standard of care in a malpractice action can only be proved by an expert’s testimony. (Id.) If the “common knowledge” exception does not apply to a medical malpractice action, expert evidence is conclusive and cannot be disregarded. (Id.)

Whether the standard of care in the community has been breached presents the basic issue in a malpractice action and can only be proved by opinion testimony unless the medical question is within the common knowledge of laypersons. (See *Jambazian v. Borden* (1994) 25 Cal.App.4th 836, 844.) “When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-985.)

In this case, the dispute between the parties centers on whether Defendants breached the applicable standard of care in connection with Plaintiff Ty Vanderford’s cataract surgery and preoperative evaluation, including the testing performed and the selection of the intraocular lens, and whether any alleged breach caused Plaintiff’s subsequent visual complaints. (Id. at p. 3.)

Defendants have submitted the declaration of Jonathan Macy, M.D., a California-licensed ophthalmologist. Dr. Macy is board certified by the American Board of Ophthalmology and has been continuously board certified since 1982. He currently practices at the Los Angeles Vision Institute and serves as a Clinical Professor at USC. Dr. Macy states that, based on his background, training, and experience, he is familiar with the standard of care applicable to ophthalmologists and is qualified to render opinions concerning the care and treatment provided to Plaintiff. (Macy Decl., ¶¶ 4-5.)

Dr. Macy reviewed the operative complaint, Plaintiff's medical chart from Azul Vision and Chevy Chase Ambulatory Center, Plaintiff's deposition transcript, and the parties' responses to Special Interrogatories, Set One. He also relied on his education, training, experience, and expertise in forming his opinions. (Macy Decl., ¶ 6.) Based on that review, Dr. Macy opines that the care and treatment rendered to Plaintiff by Dr. Logan, as well as the care provided by other providers involved in Plaintiff's evaluation and follow-up treatment at Azul Vision, Inc. and Eyecare Specialists Medical Group, Inc., was at all times within the applicable standard of care. (Macy Decl., ¶ 21.)

Dr. Macy explains that Plaintiff presented with a visually significant posterior subcapsular cataract in the right eye and a history of bilateral LASIK surgery. He opines that cataract surgery was medically indicated, prior LASIK did not contraindicate cataract surgery, and use of an EDOF lens in a patient with prior LASIK was within the standard of care. (Macy Decl., ¶¶ 22, 24.)

As to preoperative testing, Dr. Macy opines that OCT imaging is not mandatory in the absence of clinical suspicion of macular pathology and that there were no documented clinical findings requiring an OCT before surgery. He explains that an ERM is not always clinically apparent on routine examination and may require OCT for subtle detection. Even assuming a preoperative OCT had identified an ERM, Dr. Macy opines that cataract extraction would still have been medically appropriate and a mild ERM would not have contraindicated use of an EDOF lens or required a different intraocular lens. (Macy Decl., ¶¶ 25-27.)

As to causation, Dr. Macy opines, to a reasonable degree of medical probability, that no act or omission by Defendants was a substantial factor in causing or contributing to Plaintiff's alleged injuries. He states that cataract surgery does not cause an ERM and that there is no evidence Dr. Logan's surgery caused or worsened Plaintiff's ERM. (Macy Decl., ¶¶ 31-32.)

Finally, Dr. Macy opines that Plaintiff's ongoing visual complaints are due to preexisting retinal pathology, including the ERM, together with the inherent refractive variability associated with cataract surgery in a post-LASIK eye, rather than any deviation from the standard of care. (Macy Decl., ¶ 35.)

Defendants satisfy their initial burden of presenting expert evidence that the care and treatment provided to Plaintiff complied with the applicable standard of care and that no act or omission by Defendants caused Plaintiff's alleged injuries. Thus, the burden shifts to Plaintiff to present conflicting expert evidence sufficient to raise a triable issue of material fact as to breach or causation.

In opposition, Plaintiff submits the declaration of Winston D. Chamberlain, M.D., Ph.D., a board-certified ophthalmologist. Dr. Chamberlain received his B.S. in Biology from the California Institute of Technology and his Ph.D. in Immunology and M.D. from the University of Colorado Health Sciences Center. He completed an ophthalmology residency at the University of California, Irvine, followed by a fellowship in Cornea and Refractive Surgery at UC Irvine. (Chamberlain Decl., ¶¶ 2-3.)

Dr. Chamberlain states that, based upon his education, training, background, and experience, he is familiar with the standard of care for ophthalmologists and is qualified to provide expert opinions in this case. (Chamberlain Decl., ¶ 7.) In forming his opinions, Dr. Chamberlain reviewed the materials identified in paragraph 8 of his declaration, including Plaintiff's medical records, reports, and deposition transcripts. (Chamberlain Decl., ¶ 8.) Based on his review of those materials and his education, training, and experience, Dr. Chamberlain opines that Plaintiff had various preexisting optical and anatomical abnormalities that needed to be addressed before surgery. He further opines that the care and treatment provided by Dr. Logan and the technicians at Eyecare Specialists and/or Azul Vision fell below the applicable standard of care and caused injury to Plaintiff. (Chamberlain Decl., ¶¶ 9-10.)

Dr. Chamberlain specifically opines that the failure to perform an OCT before surgery and proceeding without the data it would have provided was below the standard of care. He explains that Plaintiff's preoperative findings warranted macular imaging before lens selection and surgery. Dr. Chamberlain also notes that Dr. Logan ordered an OCT of the macula on March 1, 2022, but the OCT was not performed before the April 26, 2022, surgery. (Chamberlain Decl., ¶¶ 11-14.)

Dr. Chamberlain also opines that use of the SRK/T formula to calculate Plaintiff's IOL power was below the standard of care because it was not designed to account for changes caused by prior LASIK. According to Dr. Chamberlain, use of the ASCRS post-refractive surgery calculator would have resulted in a lens power of approximately 15.16 diopters rather than the +12.0-diopter lens implanted by Dr. Logan. He opines that the implanted lens was approximately three diopters too weak and was one of the substantial factors causing Plaintiff's farsightedness and postoperative difficulty with reading. (Chamberlain Decl., ¶¶ 17-21.)

Finally, Dr. Chamberlain opines that each of the identified breaches, standing alone and/or collectively, was a substantial factor in causing Plaintiff harm. He explains that the failure to identify Plaintiff's macular and corneal abnormalities and optical compromise, together with use of the incorrect IOL formula, resulted in implantation of an underpowered EDOF lens, causing a measurable "refractive surprise," loss of depth of focus, farsightedness, difficulty reading close up, and uncorrectable blur even through spectacles. (Chamberlain Decl., ¶ 24.)

The Court finds that, based on Dr. Chamberlain's expert testimony, Plaintiff has presented sufficient evidence to raise triable issues of material fact as to whether Defendants fell below the standard of care and whether their conduct caused Plaintiff's injuries. The parties' experts offer conflicting opinions on both issues, and those disputes cannot be resolved on summary judgment. Thus, Defendants' motion is DENIED.

IV. CONCLUSION AND ORDER

The Court DENIES Defendants' motion for summary judgment.

Defendants are to give notice.

Dated: August 27, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT